IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI
BENCH-VI

C.P.(CAA)/98(PB)2021
IN
C.A.(CAA)/43(PB)2021

(Under Section 230-232 of the Companies Act, 2013 read with read with the Company (Compromises, Arrangements and Amalgamations) Rules, 2016*)*

In the Matter of Scheme of Amalgamation

1.Hitachi Consulting India Private Limited
(CIN: U72200TG2010FTC102637
Registered Office: 3-5-890, 202, Paras Chambers, Himayath Nagar, Hyderabad Telangana 500029 India.

...Transferor Company /Non-Petitioner Company

AND

2. Hitachi Vantara India Private Limited
(CIN: U74999DL2018FTC328875
Registered office: Unit No. 6A and Unit No.7, 12th Floor, Eros Corporate Towers, Nehru Place New Delhi - 110019

...Transferee Company/Petitioner Company

Coram:
SH. P.S.N. PRASAD, HON'BLE MEMBER (JUDICIAL)
SH. RAHUL BHATNAGAR, HON'BLE MEMBER (TECHNICAL)

Counsel for Petitioner/Applicant: Mr. Rajeev Kumar & Mr. Vikas Gera, Advocates.

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Counsel for RD	Ms. Shankari Mishra, Advocate
Counsel for OL	Ms. Hemlata Rawat, Advocate
Counsel for Income Tax Department	None

ORDER

PER: RAHUL BHATNAGAR, MEMBER (TECHNICAL)

Date 21.10.2022

1. This petition has been jointly filed by the Petitioner Company under Sections 230 to 232 of the Companies Act, 2013, read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, and the National Company Law Tribunal Rules, 2016, for the purpose of the approval of the proposed Scheme of Amalgamation of the Transferor Company into the Transferee Company. The copy of the Scheme of Amalgamation (hereinafter referred as the "Scheme"), has been placed on record.

2. The Transferor Company No.1, Hitachi Consulting India Private Limited was incorporated under the provisions of the Companies Act, 1956 on 04.06.2010, presently having its registered office situated

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at 3-5-890, 202, Paras Chambers, Himayath Nagar, Hyderabad, Telangana 500029.

3. The Transferee Company, M/s. Hitachi Vantara India Private Limited was incorporated under the provisions of the Companies Act, 2013 on 23.01.2018, presently having its registered office situated at Unit No. 6A and Unit No.7, 12th Floor, Eros Corporate Towers, Nehru Place New Delhi - 110019

4. The Transferor Company and Transferee Company are the part of the same group. The Transferor Company is the wholly owned subsidiary of the Transferee Company, no consideration shall be payable pursuant to the proposed scheme of Amalgamation. The Amalgamation of the Transferor Company with the Transferee Company would, inter alia, have the following benefits:

   a. Consolidation of the Transferor Company and the Transferee Company will achieve simplified corporate structure, rationalize the number of entities and result in a single entity with combined businesses

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b. Upon completion of the Amalgamation, the Transferor Company will be dissolved Consequently, there would be lesser regulatory and legal compliance obligations including accounting, reporting requirements, statutory and internal audit compliance requirements, tax filings, company law compliances, etc. and therefore reduction in administrative cost

c. It will enable optimal utilization of existing resources and provide an opportunity to fully leverage assets, capacities of the Transferor Company and Transferee Company

d. Reducing managerial overlaps involved in multiple entities, enable cost savings and effective utilization of valuable resources which will enhance the management focus integrate business functions; eliminate duplication and rationalization of administrative expenses.

e. Synchronization of efforts to achieve uniform corporate policy, greater integration and greater financial strength and flexibility for the Transferee Company.

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5. The appointed date as fixed for the proposed scheme of Amalgamation means 01.04.2021 or such other date as may be directed by any appropriate authority being the date with effect from which this scheme shall be deemed to be effective.

6. A perusal of the petition discloses that the first motion application bearing CA (CAA) 43/(PB)/2021 was jointly filed by the Petitioner Company. Based on the averments made in the said application the Tribunal vide order dated 25.08.2021 dispensed with the requirement of convening the meetings of the equity shareholders, secured creditors and unsecured creditors of the Petitioner company.

7. The Tribunal vide order dated 18.11.2021 directed the petitioner company to issue individual notices to the (i) Regional Director, Ministry of Corporate Affairs, (ii) Registrar of Companies, NCT of Delhi and Haryana, (iii) Official Liquidator, Lok Nayak Bhavan, Delhi (iv)concerned income tax department. The Petitioner Company have filed an affidavit of service dated 09.12.2021 in respect of notice of petition served to the Regional Director, Ministry of Corporate

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Affairs, Registrar of Companies, NCT of Delhi and Haryana and the concerned income tax department.

8. The Petitioner Companies have filed copy of publication affirming that notice of hearing was duly advertised in "Business Standard" (English, Delhi edition) and "Business Standard" (Hindi, Delhi edition) on 02.12.2021.

9. Pursuant to the Publication in the daily newspapers, for listing of the matter before this Bench, no objector has appeared before us.

10. Pursuant to the notice issued, Regional Director and Official Liquidator, have filed their report and participated in the proceedings.

11. The Regional Director has filed its report dated 08.02.2022 wherein it is stated that no prosecution has been filed and no inspection or investigation has been conducted in respect of the Transferee Company.

Further it is stated that, as per Clause 32 of the ROC Report dated 04.01.2022, following observation was raised:

The above-mentioned Transferor Company is non applicant in the matter of proposed scheme of Amalgamation as it is having its

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Registered office in the state of Telangana fails within the jurisdiction of the Hon'ble National Company Law Tribunal, Hyderabad Bench. It has been observed from e-records maintained in MCA21 Registry that the Hitachi Vantara India Private Limited (Transferee Company) is a subsidiary of Hitachi Vanatara LL, USA, which is holding 99.99% equity share capital in the said company. However, the Transferee Company has not filed e-form BEN-2 regarding significant beneficial ownership as required under section 90 of the Companies Act, 2013 and rules made thereunder.

Further, on examination of the Scheme, the observations of RD are as under:

Observation I

- As per the scheme the registered office of the Transferor company is in the state of Telangana and does not fall under the jurisdiction of the Hon'ble Tribunal and it is the wholly owned subsidiary of the Transferee Company (whose jurisdiction falls under the Hon'ble Tribunal), thus no consideration shall be payable to the shareholders of the Transferor Company on approval of the scheme by the Hon'ble Tribunal. As per the reply submitted by the Petitioner

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Transferee Company it is found that the Transferee Company is the Wholly owned subsidiary of a Foreign Body Corporate namely Hitachi Vanatara LLC, USA which articulates that in the said Foreign Body Corporate have beneficial interest with the Transferee Company hence, the Transferee Company is required to comply with the provisions of section 90 r/w section 89 of the Companies Act, 2013 by filing BEN-2 with the ROC but the said has not been complied by the Petitioner Company. In view of the above the Hon'ble Tribunal may direct Petitioner Transferee Company to comply with the said provisions of the Companies Act, 2013.

Observation - II

- It is stated in para-8.1 (g) of the scheme that :

"All cheques and other negotiable instruments, payment orders received or presented for encashment which are in the name of the Transferor Company after the effective Date shall be accepted by the bankers of the Transferee Company and credited to the account of the Transferee Company, if presented by the Transferee Company. Similarly, the bankers of the Transferee Company shall honour all cheques issued by the Transferor Company for

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the payment after Effective Date. If required, the Transferor Company shall allow maintaining of bank accounts in the name of Transferor Company by the Transferee Company for such time as may be determined to be necessary by the Transferor Company and the Transferee Company for presentation and deposition of cheques and pay orders that have been issued in the name of the Transferor Company".

- To this, the ROC has stated that, the above contention of the scheme is not correct since it speaks about maintenance of the Bank Account in the name of the Transferor Company by the Transferee Company after giving effect of the scheme and also honouring of cheques and other negotiable instruments drawn in the name of the Transferor Company after effective date by the Banks. Once the scheme is sanctioned by the Hon'ble Tribunal and the Board of Directors have given effect thereof, the Transferor Company will be dissolved without winding-up with effect from the Effective Date of the scheme. Therefore, the corporate life of the Transferor Company will come to an end from the effective date of the scheme, hence no Bank Account

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can be operated in the name of the Transferor Company with effect from the Effective Date of the scheme due to loss of its perpetual succession, thereby no transaction as stated above in the scheme will be done in the name of the Transferor Company from the effective date of the scheme. In view of the above it is prayed before the Hon'ble Tribunal to direct the Petitioner Company to delete such para from the scheme by amending the scheme.

Observation - III

- As per para 10 of the scheme it is stated that:

"Notwithstanding anything to the contrary, upon the scheme becoming effective, the Transferor Company shall give effect to the accounting treatment in their respective books of account in accordance with the Accounting Standard-14 (Accounting for Amalgamation) specified tinder section 133 of the Act read with Rule 7 of the companies (Accounts) Rules, 2014 and the companies (Accounting standard) Amendments Rules, 2016 or in accordance with Indian Accounting Standard (Ind-AS) — 103-Business Combination__ ..."

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- It is to submit that IND AS-103 is not applicable in this matter. Also, in the above para the company has not mentioned about the specific method of Accounting Standard-14 as applicable in this matter. In view of the above the Hon'ble Tribunal may direct the Petitioner Company to suitably amend the above para of the scheme for overcoming the defects as stated supra.

With respect to all the objections as stated by the RD in its report dated 08.02.2022, the Petitioner Company has filed an affidavit in reply to the Report filed by the RD wherein the for each observation it is stated as under

Reply with respect to Observation- I

The Petitioner Company stated that it is not required to file e-form BEN-2 as per the section 90 r/w section 89 of the Companies Act, 2013. The Petitioner Company stated that its ultimate holding company, Hitachi Limited Japan, is a Company listed at the stock exchanges of Japan and has no individual/body corporate holding 10% or more in Hitachi Limited, Japan. The shareholding pattern of the Petitioner Company and top shareholders of Hitachi Limited, Japan is reproduced as under

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Exhibit 1

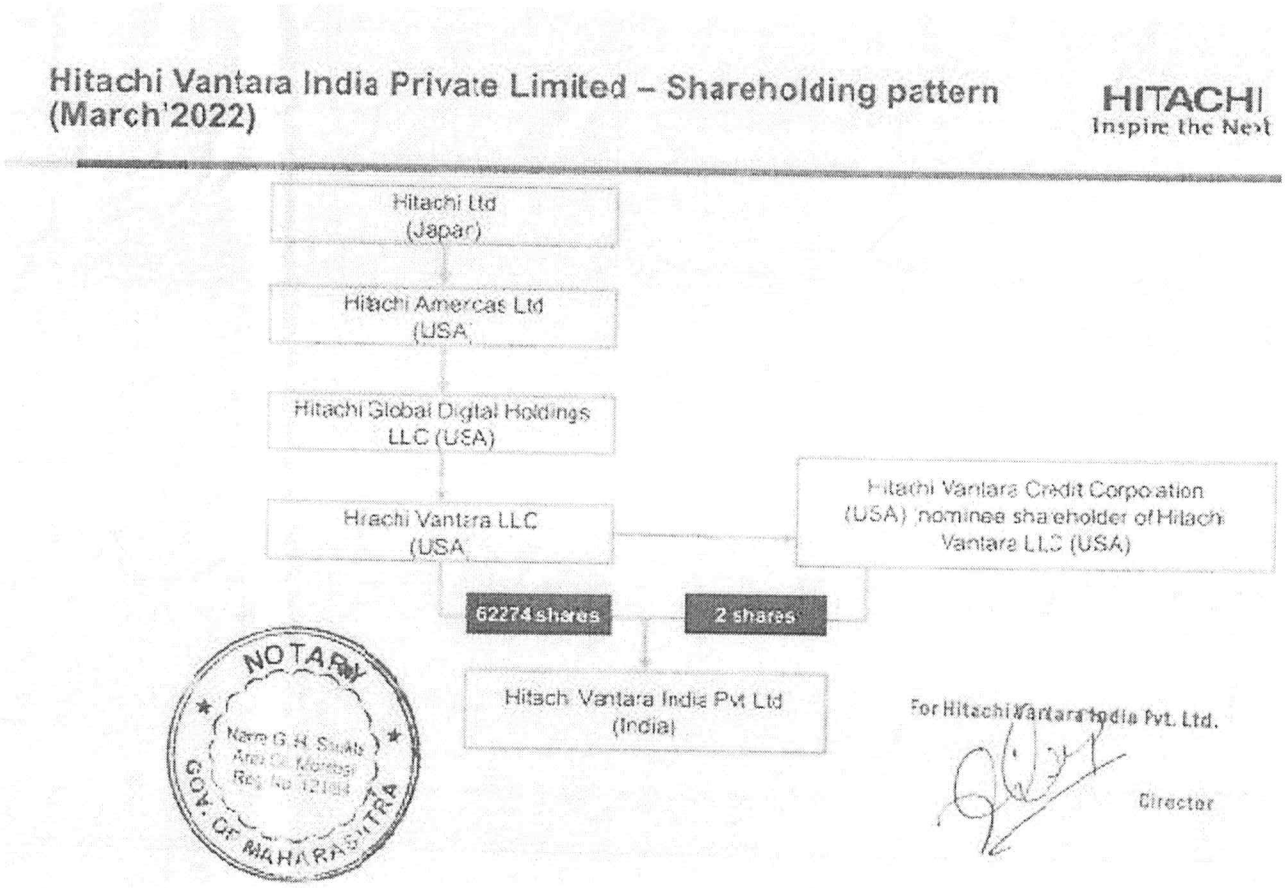
List of Top10 Shareholders of Hitachi Limited as on 31.03.2021

Sr. No	Name of Shareholders	Number of shares	Percentage of shareholding
1	The Master Trust Bank of Japan Ltd	9,11,66,600	9.43
2	Custody Bank of Japan, Ltd	5,94,65,400	6.15
3	Hitachi Employees shareholding association	2,06,06,840	2.13
4	State Street Bank and Trust Company 505223	2,05,78,060	2.13
5	Nipon Life Insurance Company	2,00,00,099	2.07
6	NATS CUMCO	1,87,02,358	1.93
7	SSBTC CLIENT OMNIBUS ACCOUNT	1,67,15,255	1.73
8	State Street Bank and Trust Company 505001	1,66,98,514	1.73
9	JP Morgan Chase Bank 385632	1,65,63,302	1.71
10	State Street Bank West-Client Treaty 505234	1,55,49,487	1.61

Verified by **Hitachi Vantara India Private Limited**
For Hitachi Vantara India Pvt. Ltd.

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Reply with Respect to Observation II:

The Petitioner Company stated that para 8.1(g) of the Scheme intends to enable the Petitioner Transferee Company to honour cheques received post Effective Date of the Scheme for payment and/or receipt on behalf of the Transferor Company only during the transition period i.e. period commencing from Effective Date of the

Scheme to such date (i.e. procedural time required) on which the Bank Account(s) maintained and operated by the Transferor Companies are closed or balances are transferred to the bank account of the Transferee Company. The Petitioner Company further clarifies that the aforementioned clause of the Scheme does not intend to provide the Transferee Company with authority/powers to operate and/or maintain the Bank Account in the name of the Transferor Company but to allow for a smoother transition of any outstanding banking obligation(s).

Reply w.r.t Observation III

It is stated that the Transferee Company is contemplating to voluntarily adopt the Indian Accounting Standards, as per which the Transferee Company would be required to implement Indian Accounting Standard - 103 for accounting of amalgamations and further undertakes to provide the required accounting treatment to the Scheme of Amalgamation on basis of accounting standard adopted by the management as on the Effective Date of the Scheme. It is hereby submitted before the Hon'ble Tribunal that the accounting treatment for the amalgamation shall be given as per the

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existing accounting standards as on the date of sanction of Scheme of Amalgamation by the Hon'ble National Company Law Tribunal, New Delhi and by the Hon'ble National Company Law Tribunal, Hyderabad.

12. The Official Liquidator has filed its report dated 25.03.2022, wherein no specific objection has been raised against the approval of the Scheme. It has been submitted in the report that the Official Liquidator has not received any complaint against the proposed Scheme from any shareholders, unsecured creditors or other stakeholders interested in the Scheme in any manner and that the affairs of all the transferor company do not appear to have been conducted in a manner prejudicial to the interest of its members or to the public interest under the provisions of the Companies Act, 1956/ Companies Act, 2013.

13. The Income Tax Department has not submitted its reports despite repeated reminders. The Applicant Company, however, in compliance with the order dated 17.05.2022 of this Tribunal, filed affidavit-cum-undertaking dated 20.05.2022 whereby it has undertaken that if any tax liability is imposed in due course of time, the same will be met as per the provision of laws. Further the

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Petitioner Companies has also filed Income Tax Returns for the last three years i.e. Assessment Year (2019-2020, 2020-2021, 2021-2022).

14. In this petition it has also been affirmed that no proceeding for inspection, inquiry or investigation under the provisions of the Companies Act, 2013 or under provisions of Companies Act, 1956 is pending against the Petitioner Companies.

15. That it is pertinent to mention that the Transferee Company falls under the jurisdiction of National Company Law Tribunal, Hyderabad, and the said Bench has approved the scheme of amalgamation vide order dated 07.04.2022

16. Certificates of respective Statutory auditors of all the petitioner company, have been placed on record to the effect that Accounting Treatment proposed in the Scheme of Amalgamation is in conformity with the Accounting Standard notified by the Central Government as specified under the provisions of Section 133 of the Companies Act, 2013 read with Rule 7 of the Companies Accounts Rules. 2014 and Companies (Accounting Standards) Amendment Rules, 2016,

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and other generally accepted accounting principles in accordance with the Companies Act, 2013, as applicable.

17. We have gone through the observations made by the RD and the Reply filed by the petitioner company and have heard the submissions made by the Ld. Counsels of both the parties. Documents and judgements relied upon by the Ld. Counsels for the parties are meticulously perused.

18. In so far as the Observation I of the Regional Director is concerned, from the shareholding submitted by the petitioner company, we observe that there is/are no individual(s) or corporate(s), holding indirectly, or together with any direct holdings, of ten percent or more, of the shares/voting rights in the shares constituting significant beneficial interest in the Transferee Company, hence, we are satisfied with the reply of the petitioner company.

19. In so far as the Observation II & III of the Regional Director is concerned, we observe that the petitioner company had provided satisfactory clarifications and undertaking with respect to the application of accounting standards and also the operations of the

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Transferor Company during the transition period which are essential for the effective implementation of the scheme.

20. Accordingly, this Tribunal is satisfied with the response of the Petitioner Company qua each of the said observations of the Regional Director, Northern Region.

21. The shareholders of the petitioner company are the best judges of their interest, fully conversant with market trends, and therefore, their decision should not be interfered with by the Tribunal for the reason that it is not a part of the judicial function to examine entrepreneurial activities and their commercial decisions. It is well settled that the Tribunal evaluating the Scheme, of which sanction is sought under Section 230-232 of the Companies Act of 2013, will not ordinarily interfere with the corporate decisions of companies approved by shareholders and creditors.

22. It has also been affirmed in the petition that the Scheme is in the interest of all the transferor company and the transferee company, including their shareholders, creditors, employees and all concerned. In view of the foregoing, upon considering the approval accorded by the members and creditors of the Petitioner Company

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to the proposed Scheme, there appears to be no impediment in sanctioning the present Scheme.

23. Consequently, sanction is hereby granted to the Scheme under Section 230 to 232 of the Companies Act, 2013.

(i) The Petitioners shall however remain bound to comply with the statutory requirements in accordance with the law.

(ii) Notwithstanding the above, if there is any deficiency found or, violation committed, qua any enactment, statutory rule or regulation, the sanction granted by this court to the scheme will not come in the way of action being taken in accordance with the law, against the concerned persons, directors and officials of the petitioners.

(iii) While approving the Scheme as above, we further clarify that this order should not be construed as an order in any way granting exemption from payment of stamp duty, taxes or any other charges if any, and payment in accordance with law or in respect to any permission/compliance with any other requirement which may be specifically required under any law.

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(iv) The appointed date as proposed in the Scheme of Amalgamation i.e. 01.04.2021 by the Applicant is confirmed by this Tribunal.

24. This Tribunal do further order

1. *That the Transferor Company shall stand dissolved without following the process of winding-up; and*
2. *That all the property, rights and powers of all the Transferor Company, be transferred without further act or deed, to the transferee company and accordingly the same shall, pursuant to Section 232 of the Companies Act, 2013, be transferred to and vest in the transferee company; and*
3. *That all the liabilities and duties of all the Transferor Company, be transferred without further act or deed, to the transferee company and accordingly the same shall, pursuant to Section 232 of the Act, be transferred to and become the liabilities and duties of the transferee company; and*

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4. *That all proceedings now pending by or against the Transferor Company, be continued by or against the transferee company; and*

5. *That all the employees of the Transferor Company in service, on the date immediately preceding the date on which the scheme takes effect, i.e. the effective date, shall become the employees of the transferee company on such date, without any break or interruption in service and upon terms and condition not less favorable than those subsisting in the concerned Transferor Company on the said date; and*

6. *That Petitioner company shall, within thirty days of the date of the receipt of this order, cause a certified copy of this order to be delivered to the Registrar of Companies for registration and on such certified copy being so delivered all the Transferor Company shall be dissolved and the Registrar of Companies shall place all documents relating to all the Transferor Company registered with him on the file, kept by him in relation to the transferee company and*

the files relating to all the petitioner company shall be consolidated accordingly; and

7. *That any person interested shall be at liberty to apply to the Tribunal in the above matter for any directions that may be necessary.*

25. The petition stands disposed of in the above terms.

Let copy of the order be served to the parties.

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(RAHUL BHATNAGAR)
MEMBER (TECHNICAL)

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(P.S.N. PRASAD)
MEMBER (JUDICIAL)